



Delaware County Commissioners Meeting January 3rd 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=S0HQ9UBf1vg
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Delaware County Commissioners Meeting Summary

Meeting Date: January 3, 2022

Location: Commissioners' Room, Delaware County

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners regular meeting to order on Monday, January 3, 2022, at 9:01 AM, beginning with the Pledge of Allegiance.
- **Attendance:**
 - **Members Present:** Commissioner Sherry Reagan (President), Commissioner Shannon Henry (Vice President), Commissioner James King, and County Attorney John Brooke.
 - **Members Absent:** None explicitly noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance and a brief moment of reflection led by the board.
- **Reorganization of the Board:**
 - **Election of President:** Commissioner Sherry Reagan was nominated and unanimously elected as President of the Board of Commissioners via roll call vote.
 - **Election of Vice President:** Commissioner Shannon Henry was nominated and unanimously elected as Vice President of the Board of Commissioners via roll call vote.
- **Annual & Term Appointments:**
 - The board reviewed and approved the 2022 annual administrative appointments (including Jenny Hunnicutt as Executive Assistant, John Brooke as County Attorney, Angela Moyer as Highway Engineer, etc.) and specific-term board appointments (including Plan Commission, Drainage Board, Stormwater Board, and Economic Development).
 - *Action & Vote Disposition:* Approved by unanimous roll call vote.
- **Approval of Minutes:**
 - Review and approval of the minutes from the December 20, 2021 commissioners' meeting and the December 17, 2021 special meeting.
 - *Action & Vote Disposition:* Approved by unanimous roll call vote.

4. Substantive Business & Board Action

- **00:07:01 Contract: Precision Kiosk Technologies (Probation Check-in System)**
 - **Sponsor / Presenter:** Jeff (Probation Department).
 - **Deliberation Summary:** The department sought approval for a contract with Precision Kiosk Technologies to install an automated biometric (fingerprint/photo) check-in kiosk system in the new justice center for low-risk probationers. The system functions as a force multiplier, maintaining 24/7 supervision and accountability for offenders without requiring direct face-to-face contact or additional staffing. Funding is fully covered for the first year via an opioid grant previously appropriated by the county council; no additional county appropriation is required.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote.
- **00:10:47 Resolution 2022-001: Adoption of "Together DM" Comprehensive Plan**
 - **Sponsor / Presenter:** Marta Moody, Executive Director of the Delaware-Muncie Metropolitan Plan Commission, alongside Thomas Eddington (Consultant, CZB).

- **Deliberation Summary:** Presentation of the final “Together DM” comprehensive plan<U+2014>a non-binding master planning document for future zoning, land use, and policy guidance developed following extensive public outreach, online surveys, and steering committee meetings. The Plan Commission held a public hearing and gave a favorable recommendation on December 9, 2021. Following county approval, the plan will go before the Muncie City Council.
 - **Item-Specific Public Input:** None specific to this item during presentation, though general discussion and questions occurred.
 - **Action & Vote Disposition:** Resolution 2022-001 approved by unanimous roll call vote [02:19:58](#).
- [02:04:04](#) **Payment of Claims**
 - **Sponsor / Presenter:** County Administration.
 - **Deliberation Summary:** Review and approval of county claims totaling \$1,419,444.50.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote.
- [01:04:00](#) **Motion to Send Solar Energy Ordinance Back to Planning Commission & Enact Moratorium**
 - **Sponsor / Presenter:** Commissioners / County Attorney.
 - **Deliberation Summary:** In response to overwhelming public concern regarding commercial solar farm developments, the board voted to send the existing solar energy provisions back to the Plan Commission with specific recommended amendments: notifying the county plan commission and health board of any damaged/leaking panels alongside a mitigation/well-testing plan, increasing property setbacks from 50 feet to 100 feet, and addressing large game (deer) fencing allowances. Additionally, the board instituted an immediate moratorium on accepting new solar farm applications until February 22, 2022, to allow time for these ordinance revisions.
 - **Item-Specific Public Input:** Addressed extensively during the public forum prior to the motion.
 - **Action & Vote Disposition:**
 - Motion to send ordinance back to the Plan Commission with amendments: Approved by unanimous roll call vote [01:05:45](#).
 - Motion to enact an immediate moratorium on solar applications through February 22, 2022: Approved by unanimous roll call vote [01:08:37](#).

5. Open Public Comment / Citizen Forum

- [02:49:58](#) **Jason Couchman (Attorney, Snyder Morgan Federoff & Kuch):** Represented local landowners in Washington Township. Expressed surprise that industrial solar farms

were permitted in farming districts without adequate notice. Requested a moratorium, property value guarantees (citing studies from UT and Rhode Island showing negative property value impacts within 3 miles), strict decommissioning/surety bonds (citing examples from Kosciusko and Franklin counties), increased liability insurance, and shifting solar farms to non-productive land or treating them as special exceptions rather than permitted uses.

- **00:34:34 Kyle Mealey (Superintendent, West Infatti / West Hill Community Schools):** Raised concerns on behalf of the school board regarding potential tax abatements for solar projects. Stated that a reduction in the operations fund would negatively impact educational programs, building maintenance, and 900+ students, potentially forcing a tax referendum.
 - **00:40:40 Catherine Kurtley (Resident & Landowner):** Voiced strong opposition on behalf of multi-generational farming families in Washington Township. Criticized the lack of direct notification regarding solar ordinances and economic revitalization area designations, and alleged aggressive corporate pressure tactics on elderly landowners.
 - **00:48:06 Ryan Richards (Resident & Farmer):** Spoke as a representative of multi-generational farming families, expressing grief over the loss of agricultural heritage, the inability of young farmers to compete with cash rent/solar land prices, and declining property protections for non-participating neighbors.
 - **00:51:42 Jason White (Farmer & Seed Dealer):** Noted that 600 family-farm acres will be surrounded by solar installations, eliminating farming opportunities for the next generation, disrupting local agricultural supply chains (seed sales/treatment), and negatively impacting non-participating neighbors.
 - **00:53:37 Jack Sheets (Resident):** Played audio simulating industrial noise from solar installations. Warned against taking prime agricultural land out of production, cited fire safety and toxic panel disposal concerns, and suggested utilizing blighted urban areas or industrial rooftops instead.
 - **00:56:40 Harold King (Resident):** Noted that rural residents lack access to the Muncie newspaper where legal notices are published, leading to widespread unawareness of the solar ordinance passed in May 2021. Asked commissioners if they would review evidence and consider a moratorium (to which commissioners answered affirmatively).
 - **00:59:38 Mike Kelly (Resident):** Stated he lives on Jonesboro Road and learned of the solar project only two days prior. Criticized the lack of direct mail notifications compared to other standard residential building permits and expressed deep concern over property degradation, loss of pastoral views, and shifting tax burdens.
 - **01:11:19 Todd Smekkins (Resident & Journalist):** Inquired about how the newly adopted "Together DM" comprehensive plan interacts with the solar moratorium and requested clarification on public notification procedures for planning meetings.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- The next regular Commissioners' meeting was rescheduled from January 18, 2022, to **January 24, 2022** (Approved by unanimous roll call vote [01:11:04](#)).
- The Metropolitan Plan Commission public hearing on the proposed solar ordinance amendments is scheduled for **February 3, 2022, at 6:00 PM** in the Commissioners' Room (with potential relocation to the Justice Center auditorium to accommodate expected attendance).
- The Commissioners will review the amended solar ordinance during their meeting on **February 22, 2022**.

- **Adjournment:**

- *Action & Disposition:* Motion to recess/adjourn approved by unanimous roll call vote [01:14:15](#).

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